

The examination is being carried out on the **following application documents**

Description, Pages

1-141 as published

Sequence listings, SEQ ID NO

1-149 as published

Claims, Numbers

1-20 filed in electronic form on 18-11-2015

Drawings, Sheets

1-21 as published

The present communication refers to the following document cited in the search report:

D3 ANN J SLADE ET AL: "Development of high amylose wheat through TILLING",
BMC PLANT BIOLOGY, BIOMED CENTRAL, LONDON, GB,
vol. 12, no. 1, 14 May 2012 (2012-05-14), page 69,
ISSN: 1471-2229, DOI: 10.1186/1471-2229-12-69

1. The amendments filed with the letter dated 18-11-15 are considered to fulfill the requirements of Article 123(2) EPC. The examination was based on the amended version of the claims.
2. In response to an objection under Article 84 EPC concerning previous claims 17 and 22 (present claims 15 and 19), Applicant argued that high amylose starch has a higher content of resistant starch which is beneficial for health. The claimed food products thus have a higher content of resistant starch while the overall quantities of starch remain acceptable from the point of view of organoleptic and handling

properties. According to Applicant this could not be compensated for by using higher quantities of conventional starch as the levels of starch that can be incorporated into food products was limited by said properties.

The Examining Division cannot follow Applicant's arguments.

Cited document D3 discloses wheat starch having an amylose content of 47-55% as well as elevated resistant starch levels (see abstract). Food products comprising said starch could only be distinguished from those as presently claimed by the present DNA comprising the respective mutations. However depending on the food, this difference may not be detectable any more. After processing of the food which may comprise procedures like ultra-heating and acid treatment, the DNA may no longer be detectable any more in the end product. In consequence, the claims are considered to comprise food products which cannot be distinguished from prior art food products like those derivable from the starch of D3. Said claims are therefore considered to lack clarity and novelty as a consequence thereof (**Article 84 and 54 EPC**).

The Applicant is asked to delete claims directed to a food product.

3. Under the assumption that the above objections will be overcome by amendment, the present set of claims could be regarded to be patentable under the provisions of the EPC.

4. The Applicant is requested to file new claims which take account of the above comments.

In order to facilitate the examination of the conformity of the amended application with the requirements of Article 123(2) EPC, the Applicant is requested to clearly identify the amendments carried out, irrespective of whether they concern amendments by addition, replacement or deletion, and to indicate the passages of the application as filed on which these amendments are based.

5. The Applicant is requested to bring the description into conformity with these claims. Care should be taken during revision, especially of the introductory portion including any statements of problem or advantages, not to add subject-matter which extends beyond the content of the application as originally filed (**Article 123(2) EPC**). In the present case, the description is to be confined to the "real" invention as expressed in the latest set of claims.

Applicant is informed that at least some of the "excess" subject-matter could be modified by indicating in the description that the embodiments concerned do not form part of the invention but represent background art useful for understanding the invention (**see the Guidelines, F-IV, 4.3(iii)**).